

Vinod Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 January 2020 · WRIT - C No. - 1142 of 2020 · **Writ disposed; Executive Engineer to pass a speaking final order; Section 127 appeal if aggrieved; coercive action stayed for a limited period.**

HEADNOTE

A consumer's writ to quash a recovery citation of Rs. 5,92,480 was disposed without examining the demand. The High Court directed the petitioner to appear before the Executive Engineer with objections and evidence, required a reasoned speaking final order within four weeks, stayed coercive recovery for seven weeks or until that disposal (whichever earlier), and left any challenge to the final order to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance would revive the citation; default in filing the objection would vacate the stay.

FACTUAL SUMMARY

Vinod Kumar Singh, holder of electricity connection no. 0232/026756, petitioned the Allahabad High Court to quash a recovery citation dated 10 June 2019 issued by respondent no. 4 for Rs. 5,92,480, and to compel the licensee to accept billed amounts as they fell due. He alleged coercive recovery without hearing and without observing the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court did not try the quantum of the demand.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

Writ on recovery citation; speaking final order then Section 127 appeal

HOLDING

Where a recovery citation is challenged in writ and the consumer's objections have not been decided by a speaking final order, the Court will not quash the citation on merits. The consumer is directed to appear before the Executive Engineer with objections and evidence; that officer must pass a reasoned speaking final order within a fixed time; coercive recovery is stayed for a limited period; and any grievance against the final order is to be pursued by appeal under Section 127 of the Electricity Act, 2003. Non-appearance revives the citation; default in filing the objection vacates the stay. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 Writ against a recovery citation was disposed without merits examination; the petitioner was sent to the Executive Engineer for a speaking final order and, if still aggrieved, to a Section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF THE RECOVERY CITATION DATED 10.6.2019 AND THE DEMAND OF RS. 5,92,480

The Court took a lenient view and directed a speaking order rather than deciding whether the citation was valid. ¶ 1

NOT DECIDED — WHETHER RESPONDENTS ACTED WITHOUT HEARING OR CONTRARY TO THE U.P. ELECTRICITY SUPPLY CODE, 2005

¶ 1

